

Roads Board Act, 2002

Document type: act
Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs
Chunks merged: 7

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Road Board Act, 2058

Seal and Publication Date
2059.03.24

Certification and Publication Date

Amending Acts

- 1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
- 2. Some Nepal Acts Amendment Act, 2072 2072.11.13
- 3. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 29 of the year 2059

An Act Made to Make Provision Relating to a Road Board

Preamble: Whereas, it is desirable to make necessary provision relating to carrying out maintenance of roads, reducing the cost incurred in maintenance of roads, and making road maintenance work transparent and effective,

Parliament has enacted this Act in the first year of the reign of His Majesty King Gyanendra Bir Bikram Shah Dev.

Chapter-1
Preliminary

१. ?????????? ??? ? ??????????: (?) ?? ????? ??? "??? ?????? ??, ??????" ?????? ? ? 1. Short Title and Commencement: (1) This Act may be cited as the "Road Board Act, 2058".

(?) ?? ?? ?????? ?????????? ?????? ?????????? ?????? ?????????? ?????????? ?????????? ?????? ? (2) This Act shall commence on the date specified by the Government of Nepal by a notification published in the Nepal Gazette.

१. ?????????: ????? ?? ?????????? ?????? ?????? ?????????? ?? ?????,-
2.

Definitions: Unless the subject or context otherwise requires, in this Act,-

(?) "???" ?????????? ?????????? ??? ??, ?????? ?????????? ?????????? ??? ?????? ????? ? (a) "Road" means a public road pursuant to the Public Road Act, 2031.

(?) "?????" ?????????? ??? ? ?????? ?????????? ?????? ??? ?????? ?????????? ????? ? (b) "Board" means the Road Board established pursuant to Section 3.

(?) "?????" ?????????? ??? ? ?????? ?????????? ?????? ?????????? ?????? ? (c) "Fee" means a fee levied pursuant to Section 6.

(?) "????? ?????" ?????????? ?????????? ?????????? ?????? ?????? ?????? ?????? ?????? ?????? ? (d) "Vehicle" means a vehicle propelled by mechanical power on a road.

(?) "????? ?????" ?????????? ?????????? ?????????? ?????????? ?????? ?????????? ?????? ?????? ?????? ?????? ?????? ? (e) "Maintenance" means the repair and maintenance work of a road carried out in accordance with the standard prescribed by the Board.

(?) "??? ?????????? ??????" ?????????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ? ?? ?????? ?????????? ?????? ?????????? ?????? ? (f) "Road related body" means a body that carries out road maintenance work, and the term also includes a local body.

(?) "?????" ?????????? ?????? ?????? ?????? ?????? ?????? ?????? ? ?????? ?????? ?????? ? ?? ?????? ?????? ???? ???? ???? ???? ???? ? (g) "Fuel" means petrol and diesel used in vehicles, and the term also includes gas or other fuel.

(?) "?????" ?????????? ??? ? ?????? ???? ???? ?????????? ?????? ?????? ????? ? (h) "Committee" means the Executive Committee constituted pursuant to Section 8.

(?) "????????? ??????????" ?????????? ??? ?? ?????? ?????????? ?????????? ?????????? ?????????? ?????? ? (i) "Executive Director" means the Executive Director of the Board appointed pursuant to Section 21.

(?) "?????????" ?????????? ?????? ??????, ?????? ?????????? ??? ?????? ?????????????????? ????? ? (j) "Ministry" means the Ministry of Physical Infrastructure and Transport of the Government of Nepal.

(?) "???" ?????????? ??? ?? ?????????? ?????????? ??? ?????? ????? ? (k) "Fund" means the Fund of the Board pursuant to Section 24.

(?) "?????" ?? "????? ??????" ?????????? ?? ?? ?????????? ?????? ?????? ?? ?????????? ?????????? ?? ?????? ?????? ?????? ????? ? (l) "Prescribed" or "as prescribed" means as prescribed in a rule or by-law made under this Act.

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?. ?????? ??????: (?) ????? ?????, ????, ????? ??? ?????? ?????? ?????? ??? ??? ????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ?????? ? ? 3.

(?) ?????? ?????????? ?????????? ?????????? ?????????? ?????? ? ?????????? ?????????? ??????? ?????? ?????????? ?????????? ??? ?????? ?????? ?????? ?????? ?????? ??, ????? ?????????? ?????????? ? ?????? ?????? ?????????? ?? ?????????? ?????????? ?????? ??????? ? (2) The central office of the Board shall be located in the Kathmandu Valley, and the Board may open branch offices or contact offices within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. as necessary.

(?) ?????? ??? ?????????? ????????? ?????? ?????? ?????? ??? ?????? ? (2) The Board shall have its own separate seal for its operations.

(?) ?????? ?????? ??? ?? ??? ????????? ????????? ?????, ?????? ?????, ????????? ????? ?? ????? ?????
 ????????? ?????????? ????? ????????? ? (3) The Board may, like a person, acquire, use, sell or otherwise dispose
 of movable and immovable property.

(?) ?????? ?????? ??? ?????? ?????? ?????? ?????? ? ?????? ??? ??? ?????? ?????? ?????? ?????? ?????? ? (4) The Board may, like a person, sue and be sued in its own name.

5. ?????? ??, ?????? ? ?????: ?????? ??, ?????? ? ?????? ????? ?????? ??????

Functions, Duties and Powers of the Board: The functions, duties and powers of the Board shall be as follows:-

(?) ????? ?????? ??????,
(a) to cause maintenance of roads.

(?) ?? ?? ?????? ??? ?????? ??? ?????? ?????? ?????? ?? ????? ?? ?????? ?????? ??? ?????????? ?????? ???
??????.

(b) to collect fees or additional fees payable for road usage pursuant to this Act and to recover fines,

(?) ?? ?? ?????? ?????? ??? ?? ?????? ???????, ?????????? ?????????? ??????? ?????? ?????? ?????? ?????? ?????? ? ?????????? ?????????? ?????????? ??????? ?????????? ??????? ?????? ?????????????? ?????????? ??? ??????,

(c) to submit recommendations to the Government of Nepal on matters of determining road or fuel fees levied under this Act, additional fees and fines levied for operating vehicles contrary to prescribed standards,

(?) ?????? ????????? ?????? ?????????? ?????? ?????????? ?????? ??????

(d) to provide advice to the Government of Nepal regarding the determination of fees,

(b) fee imposed on fuel used in vehicles,

(c) fee imposed on vehicle registration certificates,

7. Collection of Fee: (1) The fee imposed pursuant to Section 6 shall be collected by the Board.

(?) ????? (2) The procedure relating to the collection of fee pursuant to sub-section (1) shall be as prescribed.

(?) ????? (?) ?? ?????? ???? ?????? ?? ????? ???? ? ?? ????? (?) ? ????? (?) ?? ???? (?) ? (?) ?????? ?????? ?????? ???? ?????? ?????? ?????? ?????? ?????? ???? ???? ?????? ?? ?????? ?????? ?????? ?????? ? (3) Notwithstanding anything contained in sub-section (1), the fee under sub-section (1) of Section 6 and clauses (b) and (d) of sub-section (2) thereof may, if the Board deems appropriate, be collected through any person or entity by adopting the prescribed procedure.

Chapter-3

Formation of Executive Committee and its Meeting Related

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 ?????????? ??????? ???? ????? ? 8.

(?) ?????????, (????????????? ?????? ??????), ??????, ???????? ??? ???????? ?????????? ? ??????

(d) Representative, (Gazetteed First Class), Ministry of Industry, Commerce and Supplies ? Member

(?) ??????????, ??? ????? ? ??????

(e) Director General, Department of Roads ? Member

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Omitted by Some Nepal Acts Amendment Act, 2072.(f)

(?) ?????????, ?????????? ???? - ??????

(g) Representative, Association of Municipalities ? Member

(?) ?????????, ?????? ??????? ????????? ????????? - ??????

(h) Representative, Federation of Nepalese Chambers of Commerce and Industry ? Member

(?) ?????????, ????? ????????????????? ????????? - ?????

(i) Representative, Nepal Engineers Association ? Member

(?) ?????? ?????????? ?????????? ???? ?????????? ?????????????? ???? ??? ?????????? ?????? ??????
 ????? - ?????

(j) One person nominated by the Board representing associations or organizations related to transport business ? Member

(?) ???????? ???????? ???? ???????? ?????????????? ???? ??? ???????? ???????? ?????? ?????? - ?????

(k) One person nominated by the Board representing consumer related associations or organizations ? Member

(?) ??? ???????? ?????????? ???????? ?????? ?????? ?????? ?????????????????????? ???????? ???????? ?????? ?????? - ??????

(l) One person nominated by the Board from among persons having distinguished experience in the road transport sector ? Member

(?) ???????????? ?????????????????? ???????? ???????? ?????? ?????? - ??????

(m) One person nominated by the Board from among commercial farmers ? Member

(?) ???????? ???????? ?????????????? ???????? ??? ???????? ?????? ? (3) The term of office of nominated members of the Committee shall be three years.

(?) ???????? ??? ?? ???????? ?????????? ?????????? ??? ?????? ?????? ?????????? ? ??? ?????????? ?????????? ?????? ?????????? ?? ?????????????? ?????????? ???????? ?????????????????? ?????? ??? ??? ?????????? ?????? ???????? ? (4) The Committee may invite any expert working in the field of road or transport and any office bearer or employee of a road related body to participate in the meeting of the Committee as an observer.

(?) ?????????? ?????????? ?????????? ?????? ?? ??? ???????? ? (5) The Executive Director shall act as the Secretary of the Committee.

(?) ?????????? ?????????? ? ?????????? ?????????? ?????????? ??? ??? ?????? ?????? ?????????? ?????? ???????? ???????? ? (6) The Chairperson and members of the Committee shall receive meeting allowance as prescribed for participating in the meeting of the Committee.

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9.

Circumstances for Vacancy in the Office of Member: The office of a nominated member of the Committee shall be deemed vacant in the following circumstances:-

(?) ?????? ?????????? ???????? ???????? ???????? ???????? ?????????? ???????,

(a) if he/she resigns from his/her office before the nominating body,

(?) ?????? ?????????? ?????? ??????,

(b) if his/her term of office expires,

(?) ??? ?????????? ?????????????? ???????,

(c) if he/she is adjudged insolvent,

(?) ??? ?????? ?????????? ?????????? ?????????? ?????????? ??????????

(d) if he/she is convicted by a court of a criminal offence,

(?) ?????? ???????? ?????? ? ?????????? ?????? ??? ??? ?????????? ??? ?????????? ?????????? ?????????? ??????

(e) if he/she is absent without notice and without reasonable and sufficient cause for up to three consecutive meetings of the Committee,

(?) ?????? ?????????? ?????? ? (f) if he/she dies.

(?) ?????? ??? ?????? ????????? ????? ????????? ?????? ??? ?????????? ??